

- (b) to the railway administration on whose railway the destination station lies, or the loss, destruction, damage or deterioration occurs, within a period of six months from the date of entrustment of the goods.

(2) Any information demanded or enquiry made in writing from, or any complaint made in writing to, any of the railway administration mentioned in sub-section (1) by or on behalf of the persons within the said period of six months regarding the non-delivery or delayed delivery of the goods with particulars sufficient to identify the goods shall, for the purpose of this section, be deemed to be a notice of claim for compensation.

(3) A person shall not be entitled to a refund of an overcharge in respect of goods carried by railway unless a notice therefore has been served by him or on his behalf to the railway administration to which the over-charge has been paid within six months from the date of such payment or the date of delivery of such goods at the destination station, whichever is later.

Comments

Section 106 provides the railway administration to which and the period within which the notice of claim for compensation or refund of overcharge shall be given for loss, destruction etc. of the goods carried by railway or for overcharges.

Since the act itself provides the mode it must be held that claim under Sec. 78-B (new Sec. 106) may be preferred by sending such claim to the Chief Commercial Superintendent under a prepared letter and registered under the Indian Post Office Act. Further Sec. 142 (new Sec. 194) of the Act provides for raising statutory presumption of service if letter was properly addressed and registered.

Overcharge – Meaning of. – In common parlance. The simple meaning of “overcharge” is anything charged in excess of what is actually to be charged for a particular thing.

It must be held that when a claimant avails the statutory procedure of the Act within six months then it is sufficient compliance of sec. 78-B (new Sec. 106).

107. Application for compensation for loss, etc. of goods. – An application for compensation for loss, destruction, damage, deterioration or non-delivery of goods shall be filed against the railway administration on whom a notice under Sec. 106 has been served.

Comments

Section 107 provides that application for compensation for loss, destruction, damage, etc. of goods should be filed against the railway administration on whom a notice under Sec. 106 has already been served.

108. Person entitled to claim compensation – (1) If a railway administration pays compensation for the loss, destruction, damage, deterioration or non-delivery of goods entrusted to it for carriage, to the consignee or the endorsee producing the railway receipt, the railway administration shall be deemed to have discharged its liability and no application before the Claims Tribunal or any other legal proceedings shall lie against the railway administration on the ground that the consignee or the endorsee was not legally entitled to receive such compensation.

(2) Nothing in Sub-section(1) shall affect the right of any person having any interest in the goods to enforce the same against the consignee or the endorsee receiving compensation under that sub-section.

Comments

Section 108 deals with the person entitled to claim compensation, absolves the railway administration of its responsibilities and bar suit against it, in cases the claim has been paid to a person on production of railway receipt.

108. Appellant is estopped from taking plea that respondent's father is not duly constituted attorney of the respondent. – The Court cannot in law take the plea that the respondents father had no power of attorney in his favour to file the petitions. Accepting the respondents father as the attorney of the respondent the appellant took the advantage and the appellant should be deemed to be stopped from taking the plea that the respondents father is not the duly constituted attorney of the respondent.

109. Railway administration against which application for compensation for personal injury is to be filed. – An application before the Claims tribunal for compensation for the loss of life or personal injury to a passenger, may be instituted against. –

- (a) the railway administration from which the passenger obtained his pass or purchased his ticket, or
- (b) the railway administration on whose railway the destination station lies or the loss or personal injury occurred.

Comment

“Entertain “ – means of : The expression “Entertain” does not mean same thing as filing of the application. The aforesaid view was expressed by the